COMMERCIAL LEASE AGREEMENT

Brookside Kingsley Market Lofts | Des Moines, IA

REVIEWED 12/27

Landlord	Brookside Kingsley Market Lofts Owner LLC
Tenant	Crescent Wine Bar
Premises	Suite 23230, Brookside Kingsley Market Lofts
Lease Date	November 26, 2025
Term	4 years

1. Premises. Landlord leases to Tenant, and Tenant leases from Landlord, the Premises described in the Basic Lease Information located at Brookside Kingsley Market Lofts, 9626 Industrial Avenue, Des Moines, IA 41476. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of IA.

2. Term. The term of this Lease shall be 9 years commencing on the Commencement Date, unless sooner terminated or extended pursuant to the terms hereof. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

3. Base Rent. Tenant shall pay monthly Base Rent in the amounts set forth in the Rent Schedule, in advance, on the first day of each calendar month, without demand, deduction or offset. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

4. Additional Rent and Operating Expenses. Tenant shall pay its Proportionate Share of Operating Expenses, Real Estate Taxes and Insurance Costs, estimated monthly and reconciled annually. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of IA.

5. Security Deposit. Upon execution, Tenant shall deposit with Landlord a security deposit equal to 22 months of Base Rent, to be held without interest. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

6. Use. The Premises shall be used solely for the Permitted Use and for no other purpose without Landlord's prior written consent. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

7. Maintenance and Repairs. Landlord shall maintain the roof, structure and common areas. Tenant shall maintain the interior of the Premises, including HVAC equipment exclusively serving the Premises. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of IA. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

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8. Alterations. Tenant shall not make any alterations costing more than $411,000 without Landlord's prior written consent, which shall not be unreasonably withheld. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of IA. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

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9. Insurance and Indemnity. Tenant shall maintain commercial general liability insurance of not less than $2,000,000 per occurrence naming Landlord and Landlord's lender as additional insureds. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

10. Assignment and Subletting. Tenant shall not assign this Lease or sublet all or any part of the Premises without Landlord's prior written consent. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

11. Default and Remedies. If Tenant fails to pay rent within five days of written notice, or fails to cure any other default within thirty days, Landlord may terminate this Lease and pursue all remedies at law. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

12. Renewal Option. Tenant shall have 15 option(s) to renew for 3 years each at the then-prevailing market rent upon at least nine months' notice. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

13. Subordination and Estoppel. This Lease is subordinate to any mortgage now or hereafter encumbering the Property, and Tenant shall deliver an estoppel certificate within ten days of request. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

14. Premises. Landlord leases to Tenant, and Tenant leases from Landlord, the Premises described in the Basic Lease Information located at Brookside Kingsley Market Lofts, 9626 Industrial Avenue, Des Moines, IA 41476. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of IA.

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Capital Project Schedule

Project	Category	Start	Completion	Budget	Spent to Date	Status
ADA compliance	Life Safety	08/22/23	Q1 2026	$422,000	$121,609	Bidding
Fire alarm panel upgrade	Site	02/14/24	Q4 2027	$250,000	$230,611	In progress
Parking lot resurfacing	Building	05/23/23	Q3 2026	$760,000	$144,784	Bidding
Pool resurfacing	Site	01/08/23	Q3 2027	$134,000	$65,365	Bidding
Fence replacement	Building	01/18/26	Q3 2027	$251,000	$166,356	Approved
Roof replacement - Bldg D	Energy	03/26/26	Q1 2025	$815,000	$177,668	Approved
Door hardware	Building	06/22/26	Q3 2025	$354,000	$117,550	Deferred
Roof replacement - Bldg B	Interior	10/18/26	Q1 2025	$407,000	$247,563	Bidding
Parking lot resurfacing	Interior	11/17/24	Q2 2026	$646,000	$94,417	Complete
Security camera upgrade	Building	03/03/26	Q3 2025	$53,000	$34,876	Complete
Unit interior upgrades	Life Safety	10/27/23	Q1 2025	$220,000	$58,995	Bidding
Amenity renovation	Site	03/27/26	Q2 2027	$378,000	$146,371	Deferred
Parking lot resurfacing	Site	09/26/24	Q3 2025	$822,000	$655,102	Complete
Parking lot resurfacing	Energy	06/10/23	Q1 2026	$676,000	$418,126	Bidding
Amenity renovation	Interior	09/05/24	Q3 2026	$415,000	$368,710	Complete
Pool resurfacing	Building	04/30/24	Q4 2025	$104,000	$45,489	Bidding
Exterior paint	Building	01/09/23	Q2 2026	$778,000	$260,976	Complete
ADA compliance	Energy	08/05/25	Q2 2027	$722,000	$205,130	Approved
Sewer line repair	Interior	05/17/24	Q1 2027	$258,000	$46,574	Bidding
Security camera upgrade	Interior	02/25/26	Q1 2027	$896,000	$53,238	Bidding
Lobby renovation	Energy	05/04/23	Q4 2026	$170,000	$24,215	In progress
Security camera upgrade	Energy	10/30/26	Q1 2025	$557,000	$354,571	Bidding
Signage / monument	Interior	11/18/25	Q4 2027	$741,000	$470,264	Bidding
Unit interior upgrades	Life Safety	12/25/25	Q3 2027	$345,000	$46,983	Approved
Elevator modernization	Building	04/07/23	Q2 2026	$337,000	$234,298	Complete
Pool resurfacing	Life Safety	10/02/24	Q2 2026	$809,000	$446,597	Complete
Landscape / irrigation	Interior	01/04/23	Q2 2026	$789,000	$464,571	Deferred
Door hardware	Building	08/27/24	Q2 2026	$724,000	$544,239	In progress
LED lighting retrofit	Life Safety	02/03/26	Q4 2025	$289,000	$65,531	Deferred
Storefront glazing	Site	02/25/23	Q4 2027	$358,000	$147,730	In progress
Roof replacement - Bldg B	Life Safety	02/01/24	Q4 2026	$832,000	$671,529	Complete
Pool resurfacing	Life Safety	06/08/23	Q4 2027	$189,000	$54,286	Bidding
Elevator modernization	Life Safety	12/20/23	Q3 2027	$745,000	$443,241	Complete
Landscape / irrigation	Energy	08/23/26	Q2 2025	$47,000	$1,678	Complete
Sewer line repair	Site	02/25/23	Q4 2027	$559,000	$420,494	In progress
Sewer line repair	Site	07/03/26	Q1 2027	$787,000	$259,147	Approved
Exterior paint	Site	08/07/26	Q2 2027	$798,000	$790,985	Complete
ADA compliance	Interior	05/04/26	Q1 2025	$227,000	$81,844	Bidding
Sewer line repair	Life Safety	11/05/24	Q4 2025	$184,000	$9,166	In progress
Water heater replacement	Building	02/04/23	Q1 2027	$549,000	$458,577	Approved
Roof replacement - Bldg A	Energy	06/21/25	Q2 2027	$140,000	$118,502	Complete
Fire alarm panel upgrade	Interior	03/15/26	Q1 2026	$331,000	$43,303	In progress
Parking lot resurfacing	Site	10/06/26	Q4 2026	$231,000	$52,950	Complete

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15. Term. The term of this Lease shall be 12 years commencing on the Commencement Date, unless sooner terminated or extended pursuant to the terms hereof. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of IA. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

16. Base Rent. Tenant shall pay monthly Base Rent in the amounts set forth in the Rent Schedule, in advance, on the first day of each calendar month, without demand, deduction or offset. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

17. Additional Rent and Operating Expenses. Tenant shall pay its Proportionate Share of Operating Expenses, Real Estate Taxes and Insurance Costs, estimated monthly and reconciled annually. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

18. Security Deposit. Upon execution, Tenant shall deposit with Landlord a security deposit equal to 32 months of Base Rent, to be held without interest. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

19. Use. The Premises shall be used solely for the Permitted Use and for no other purpose without Landlord's prior written consent. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

20. Maintenance and Repairs. Landlord shall maintain the roof, structure and common areas. Tenant shall maintain the interior of the Premises, including HVAC equipment exclusively serving the Premises. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Time is of the essence with respect to each and every provision of this instrument.

21. Alterations. Tenant shall not make any alterations costing more than $147,000 without Landlord's prior written consent, which shall not be unreasonably withheld. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of IA.

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Capital Project Schedule

Project	Category	Start	Completion	Budget	Spent to Date	Status
Signage / monument	Energy	05/18/24	Q1 2027	$310,000	$60,742	In progress
Parking lot resurfacing	Energy	03/22/26	Q3 2026	$853,000	$208,550	In progress
Lobby renovation	Site	02/26/26	Q2 2025	$114,000	$14,185	In progress
Landscape / irrigation	Building	03/29/25	Q4 2026	$207,000	$166,625	Deferred
Elevator modernization	Interior	12/17/25	Q2 2027	$841,000	$335,355	Deferred
Security camera upgrade	Life Safety	10/23/23	Q1 2027	$55,000	$23,163	Approved
Sewer line repair	Building	06/10/25	Q3 2026	$253,000	$90,656	Bidding
Water heater replacement	Building	06/17/24	Q1 2026	$670,000	$608,234	Complete
Elevator modernization	Life Safety	02/09/24	Q3 2027	$489,000	$443,593	In progress
Storefront glazing	Energy	08/28/23	Q1 2027	$240,000	$159,112	Complete
Lobby renovation	Interior	05/27/24	Q3 2027	$713,000	$363,031	Complete
Landscape / irrigation	Site	01/09/23	Q3 2026	$274,000	$13,920	Deferred
Exterior paint	Building	05/20/24	Q2 2027	$305,000	$276,444	Deferred
Amenity renovation	Interior	06/12/23	Q3 2026	$422,000	$310,385	Deferred
Fire alarm panel upgrade	Building	06/07/23	Q4 2025	$634,000	$303,865	Approved
Exterior paint	Interior	09/25/25	Q1 2025	$376,000	$163,800	Complete
Water heater replacement	Building	10/18/25	Q4 2026	$833,000	$389,451	Bidding
Security camera upgrade	Energy	04/07/26	Q2 2026	$24,000	$21,202	In progress
ADA compliance	Energy	07/29/26	Q4 2026	$176,000	$49,254	In progress
Parking lot resurfacing	Building	08/29/23	Q1 2025	$629,000	$472,972	Deferred
Fence replacement	Building	05/02/23	Q1 2025	$701,000	$215,089	Deferred
Signage / monument	Life Safety	01/16/25	Q4 2025	$877,000	$527,587	Bidding
Fire alarm panel upgrade	Life Safety	12/26/26	Q1 2026	$503,000	$481,702	Complete
Parking lot resurfacing	Life Safety	04/11/25	Q4 2025	$149,000	$34,631	Complete
Door hardware	Interior	03/13/25	Q3 2027	$356,000	$140,519	Approved
HVAC replacement	Life Safety	08/09/24	Q2 2026	$704,000	$22,513	Approved
Sewer line repair	Building	01/21/23	Q4 2025	$450,000	$53,848	Bidding
Water heater replacement	Interior	03/18/23	Q4 2026	$183,000	$156,673	Bidding
Exterior paint	Interior	01/28/26	Q3 2025	$679,000	$209,020	Deferred
Unit interior upgrades	Energy	08/25/26	Q3 2026	$303,000	$12,322	Deferred
Door hardware	Interior	08/02/26	Q2 2027	$806,000	$710,561	Approved
Door hardware	Life Safety	05/16/26	Q1 2027	$684,000	$326,166	Approved
Sewer line repair	Life Safety	12/05/26	Q3 2026	$865,000	$186,558	In progress
Security camera upgrade	Site	04/19/25	Q2 2025	$745,000	$113,065	Deferred
Sewer line repair	Site	04/01/25	Q1 2027	$342,000	$309,117	Complete
Landscape / irrigation	Life Safety	12/31/23	Q2 2027	$745,000	$438,802	Deferred
Sewer line repair	Interior	01/09/25	Q3 2027	$642,000	$41,890	Deferred
Signage / monument	Site	02/12/25	Q4 2027	$660,000	$45,006	Bidding
Amenity renovation	Building	02/08/24	Q1 2026	$277,000	$256,879	Deferred
LED lighting retrofit	Energy	10/30/24	Q4 2026	$388,000	$47,431	Approved
Amenity renovation	Life Safety	10/11/24	Q3 2025	$271,000	$159,706	Approved
Parking lot resurfacing	Life Safety	10/04/23	Q2 2026	$329,000	$14,282	In progress

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22. Insurance and Indemnity. Tenant shall maintain commercial general liability insurance of not less than $2,000,000 per occurrence naming Landlord and Landlord's lender as additional insureds. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of IA.

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23. Assignment and Subletting. Tenant shall not assign this Lease or sublet all or any part of the Premises without Landlord's prior written consent. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of IA. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

24. Default and Remedies. If Tenant fails to pay rent within five days of written notice, or fails to cure any other default within thirty days, Landlord may terminate this Lease and pursue all remedies at law. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

25. Renewal Option. Tenant shall have 37 option(s) to renew for 10 years each at the then-prevailing market rent upon at least nine months' notice. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

26. Subordination and Estoppel. This Lease is subordinate to any mortgage now or hereafter encumbering the Property, and Tenant shall deliver an estoppel certificate within ten days of request. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

27. Premises. Landlord leases to Tenant, and Tenant leases from Landlord, the Premises described in the Basic Lease Information located at Brookside Kingsley Market Lofts, 9626 Industrial Avenue, Des Moines, IA 41476. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of IA. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

28. Term. The term of this Lease shall be 9 years commencing on the Commencement Date, unless sooner terminated or extended pursuant to the terms hereof. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

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Capital Project Schedule

Project	Category	Start	Completion	Budget	Spent to Date	Status
Signage / monument	Life Safety	10/31/23	Q2 2027	$522,000	$314,495	Bidding
Parking lot resurfacing	Life Safety	03/28/24	Q1 2027	$387,000	$212,843	Approved
Water heater replacement	Energy	12/16/26	Q4 2027	$189,000	$20,891	Bidding
Door hardware	Life Safety	03/20/26	Q4 2026	$337,000	$85,400	Approved
HVAC replacement	Energy	02/13/23	Q1 2027	$453,000	$234,872	Deferred
Elevator modernization	Site	11/25/23	Q2 2027	$706,000	$639,052	Approved
Pool resurfacing	Interior	05/31/26	Q2 2025	$325,000	$217,914	Complete
Fire alarm panel upgrade	Interior	07/28/23	Q1 2026	$47,000	$6,328	Approved
Amenity renovation	Energy	08/11/26	Q3 2026	$245,000	$136,945	Complete
Roof replacement - Bldg B	Site	07/27/23	Q4 2025	$306,000	$53,650	Complete
Lobby renovation	Energy	07/22/25	Q1 2026	$384,000	$26,563	Complete
Parking lot resurfacing	Energy	01/24/26	Q2 2025	$630,000	$126,138	Complete
Unit interior upgrades	Energy	10/10/26	Q2 2026	$461,000	$171,446	In progress
Sewer line repair	Site	07/31/23	Q4 2027	$196,000	$25,869	Bidding
Parking lot resurfacing	Life Safety	01/13/23	Q3 2027	$424,000	$249,907	Approved
Fence replacement	Life Safety	10/08/23	Q1 2027	$83,000	$50,954	Approved
Door hardware	Interior	01/16/25	Q1 2025	$681,000	$238,041	Deferred
Exterior paint	Building	02/28/23	Q1 2025	$469,000	$216,316	Complete
Water heater replacement	Interior	03/08/25	Q2 2025	$423,000	$443,654	In progress
Water heater replacement	Interior	10/10/24	Q3 2026	$889,000	$62,668	Deferred
Fence replacement	Site	02/26/24	Q2 2027	$66,000	$64,111	In progress
Water heater replacement	Interior	04/18/25	Q2 2026	$51,000	$16,747	Bidding
Signage / monument	Building	04/09/26	Q4 2025	$473,000	$363,495	Complete
Parking lot resurfacing	Life Safety	08/20/24	Q1 2026	$336,000	$181,115	Approved
Storefront glazing	Energy	09/15/23	Q2 2027	$891,000	$249,937	Deferred
Signage / monument	Interior	12/28/26	Q2 2026	$750,000	$514,955	Approved
LED lighting retrofit	Energy	09/04/25	Q1 2025	$202,000	$51,506	Deferred
Lobby renovation	Interior	05/19/23	Q2 2027	$585,000	$136,900	Bidding
Lobby renovation	Energy	02/04/25	Q3 2027	$422,000	$235,352	Bidding
Pool resurfacing	Energy	07/21/24	Q1 2025	$865,000	$567,828	Bidding
Unit interior upgrades	Building	10/06/26	Q3 2026	$758,000	$44,100	In progress
Unit interior upgrades	Energy	05/18/23	Q1 2025	$728,000	$576,853	Deferred
Amenity renovation	Site	02/06/25	Q2 2025	$34,000	$5,443	In progress
Lobby renovation	Energy	04/06/24	Q2 2025	$375,000	$391,628	In progress
Fence replacement	Interior	06/24/24	Q4 2027	$221,000	$174,156	Complete
Unit interior upgrades	Interior	12/21/26	Q3 2025	$100,000	$42,760	Deferred
LED lighting retrofit	Building	01/17/25	Q1 2027	$709,000	$132,445	Complete
LED lighting retrofit	Energy	04/10/25	Q1 2026	$320,000	$63,875	Approved
Exterior paint	Building	06/02/26	Q1 2026	$704,000	$723,711	Bidding
Pool resurfacing	Energy	02/25/23	Q4 2027	$187,000	$96,231	Deferred
HVAC replacement	Building	01/30/23	Q1 2025	$346,000	$59,021	Complete

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